

PROPOSED  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2118  
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 9-485.01, Arizona Revised Statutes, is amended  
3 to read:

4 9-485.01. Mobile food vendors; mobile food units; operation

5 A. In relation to a mobile food vendor or mobile food unit, a city  
6 or town by ordinance or resolution may:

7 1. Prohibit or restrict a mobile food vendor from operating at a  
8 public airport or public transit facility, in an area zoned for  
9 residential use or within two hundred fifty feet of an area zoned for  
10 residential use.

11 2. Continue to enact and enforce regulations and zoning codes on  
12 mobile food units or mobile food vendors that are not otherwise prohibited  
13 by law.

14 B. In relation to a mobile food vendor or mobile food unit, a city  
15 or town may not:

16 1. Require a mobile food vendor, property owner or lessee of a  
17 property to apply for and receive any special permit that is not required  
18 for other temporary or mobile vending businesses in the same zoning  
19 district.

20 2. Require a mobile food vendor or mobile food unit to operate a  
21 specific distance from the perimeter of an existing commercial  
22 establishment or restaurant, except as required by applicable building,  
23 fire, street and sidewalk codes.

24 3. Prohibit or restrict a mobile food vendor or mobile food unit  
25 from using any legal parking space, including metered parking, except to  
26 restrict the number of spaces, vehicle size and parking duration and the  
27 ability to occupy sites with insufficient parking capacity as prescribed  
28 by a local zoning ordinance of the city or town or as otherwise prohibited  
29 by federal law.

30 4. Require a mobile food unit to be inspected by a city or town  
31 fire department before operation if the mobile food vendor provides  
32 evidence that the mobile food unit passed a fire inspection by another  
33 city or town fire department in this state within the preceding twelve  
34 months.

35 5. REQUIRE A MOBILE FOOD VENDOR TO OBTAIN A LOCAL REGULATORY PERMIT  
36 OR LICENSE.

House Amendments to H.B. 2118

1           C. A city or town with a population of more than fifty thousand  
2 persons shall make available all applicable license applications in an  
3 electronic format that is available online and may not require a mobile  
4 food vendor to apply in person."  
5 Amend title to conform

NEAL CARTER

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